DOCUMENT-BASED QUESTION

2.3 Foundations of Democracy

Democracy is founded on a number of principles, one of which is equality. Throughout history, legal documents have outlined rights and created rules for governing communities fairly. Some of these writings inspired the authors of the Declaration of Independence and the Constitution.

In colonial New England, the Puritans established a style of governing that revolved around town hall meetings. These meetings were some of the first experiments in American democracy. Certain requirements limited who could vote in the meetings, however. In most cases, only male, property-owning church members had a vote. Today, all citizens can participate fully in town hall meetings, regardless of gender, race, or wealth.

CRITICAL VIEWING Old Town Hall, located in Canterbury, New Hampshire, was built in 1736. It continues to function as a meeting and polling place. Below, a Canterbury citizen leaves Old Town Hall after voting in a primary during the 2012 election. What details from the photo indicate that the citizens of Canterbury value their town hall?



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DOCUMENT ONE

Primary Source: Legal Document from the Magna Carta, 1215

The Magna Carta, or "Great Charter," served as a peace treaty between King John of England and his barons, who rebelled against the heavy taxes the king **levied** on them, or required that they pay. The original document contained 63 clauses detailing laws that everyone was expected to follow. Principles in the Magna Carta were later embodied in the 1689 English Bill of Rights, such as the right to a trial by jury and protection from excessive fines and cruel punishment.

CONSTRUCTED RESPONSE Why is it significant that the Magna Carta includes the phrase "lawful judgment of his equals"?

> No free man shall be seized or imprisoned, or stripped of his rights or possessions, or outlawed or exiled, or deprived of his standing in any other way, nor will we proceed with force against him, or send others to do so, except by the lawful judgment of his equals or by the law of the land.

DOCUMENT TWO

Primary Source: Legal Document from the Mayflower Compact, 1620

Just prior to settling Plymouth, Massachusetts, the settlers-to-be signed the Mayflower Compact on board their ship. The agreement established **self-governance**, or control of the colony based on the democratic principle of common consent.

CONSTRUCTED RESPONSE What reasons do the Mayflower Compact signers give for working together as a "civil body politic"?

> Having undertaken . . . a voyage to plant the first colony in the northern parts of Virginia, do . . . solemnly and mutually in the presence of God and one another, covenant [promise], and combine ourselves together into a civil body politic, for our better ordering and preservation, and furtherance of the ends aforesaid; and . . . to enact, constitute, and frame such just and equal laws . . . as shall be thought most meet and convenient for the general good of the colony.

DOCUMENT THREE

Primary Source: Legal Document from the Fundamental Orders of Connecticut, 1639

The founders of Connecticut drafted a plan of government called the Fundamental Orders of Connecticut. The document created an assembly of elected representatives from each town in the colony. The ideas captured in this document were later reflected in the U.S. Constitution.

CONSTRUCTED RESPONSE Why do you think it was important to the colony founders that the representatives lived in the towns they represented?

> It is Ordered . . . and decreed, that there shall be yearly two General Assemblies or Courts. The first shall be called the Court of Election, wherein shall be yearly chosen from time to time, so many Magistrates and other public Officers as shall be found requisite [necessary] . . . which choice shall be made by all that are admitted freemen and have taken the Oath of Fidelity [loyalty], and do cohabit within this Jurisdiction . . . of the Town wherein they live.

SYNTHESIZE & WRITE

1. **REVIEW** Review what you have learned about the Magna Carta, the Mayflower Compact, and the Fundamental Orders of Connecticut.
2. **RECALL** On your own paper, write the main ideas about government expressed in the Magna Carta, the Mayflower Compact, and the Fundamental Orders of Connecticut.
3. **CONSTRUCT** Construct a topic sentence that answers this question: How is the Magna Carta, written in 1215, similar to the Mayflower Compact and the Fundamental Orders of Connecticut?
4. **WRITE** Using evidence from this chapter and the documents, write a paragraph that supports your topic sentence in Step 3.

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